

Court No. - 4

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Bala Krishna Narayana,J.

Hon'ble Irshad Ali,J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondents no.1 to 3 and Sri S.S. Yadav, Advocate, holding brief of Sri Kapil Dev Singh Rathore, learned counsel for respondents no.4 and 5.

It is submitted by learned counsel for the petitioner that without initiating any proceedings as contemplated under Section 126 of the Electricity Act, 2003 read with clause 6.8 of the U.P. Electricity Supply Code, 2005, respondent no. 5 has illegally and arbitrarily and without affording any opportunity of hearing to the petitioner held the petitioner liable to pay a sum of Rs.1,05,120/- towards electricity dues and issued a Recovery Certificate dated 15.07.2017 to respondent no. 3, copy whereof has been appended as Annexure No.8 to the writ petition and pursuant thereto respondent no. 3 has issued the impugned Recovery Citation dated 06.02.2018, copy whereof has been appended as Annexure No.9 to the writ petition.

Specific averments in this regard have been made by the petitioner in Paragraphs 20 and 21 of the writ petition.

Sri S.S. Yadav, Advocate, holding brief of Sri Kapil Dev Singh Rathore, learned counsel for the respondents no. 4 and 5 prays for and is granted a week's time to seek instruction in the matter.

List on 21.03.2018 before the appropriate Court.

Till the next date of listing, recovery proceedings initiated against the petitioner pursuant to the impugned Recovery Citation dated 06.02.2018 (Annexure No.9 to the writ petition) shall remain stayed.

Order Date :- 12.3.2018

NS

Court No. - 3

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

No notice has been served on learned counsel for the respondent Corporation, about the mention made.

Put up this case in the additional cause list on 17 August 2021.

Interim order, granted earlier, is extended till the next date of listing.

Order Date :- 3.8.2021

Prakhar

Court No. - 3

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C., Kapil Dev Singh
Rathore

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Put up in the additional cause list on 31st August, 2021 showing the name of Ms. Rishu Mishra, learned counsel for the Corporation.

Learned counsel for the petitioner may also inform Ms. Rishu Mishra, learned counsel for the Corporation about this order, in writing.

Interim order granted earlier is extended till next date of listing.

Order Date :- 17.8.2021

A.Kr.

Court No. - 3

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore,Rishu Mishra

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

As prayed, list after two weeks'.

Interim order, if any, granted earlier shall continue till the next date of listing.

Order Date :- 31.8.2021

Saurabh

Court No. - 40

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh
Rathore,Rishu Mishra

Hon'ble Manoj Misra,J.

Hon'ble Jayant Banerji,J.

Due to paucity of time, the matter could not be taken up.

List this case after four weeks.

Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 17.9.2021

SK

Court No. - 3

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore,Rishu Mishra

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Time is short today.

List after two weeks.

Interim order, granted earlier, is extended till the next date of listing.

Order Date :- 18.10.2021

Saurabh

Court No. - 29

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh
Rathore,Rishu Mishra

Hon'ble Pritinker Diwaker,J.

Hon'ble Ashutosh Srivastava,J.

At the request of learned counsel for the petitioner, list this case in the week commencing 22.08.2022.

Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 29.7.2022

pks

(Ashutosh Srivastava,J.)

(Pritinker Diwaker,J.)

Court No. - 39

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh
Rathore,Rishu Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Jyotsna Sharma,J.

List after two weeks.

Interim order granted earlier, to continue till the next date of listing.

Order Date :- 22.8.2022

Saif

Court No. - 39

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore,Rishu Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Mrs. Jyotsna Sharma,J.

As prayed, put up on **21.09.2022** in the additional cause list.

Interim order, if any, extended till the next date of listing.

Order Date :- 6.9.2022

Harshita

Court No. - 39

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore,Rishu Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

List on 17.10.2022.

Interim order, if any, is extended till the next date of listing.

Order Date :- 21.9.2022

sailesh

Court No. - 39

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore,Rishu Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

As prayed, put up on 21.11.2022 in the additional cause list.

Interim order, if any, granted earlier, shall continue till the next date of listing.

Order Date :- 17.10.2022

Harshita

Court No. - 39

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore,Rishu Mishra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

List this matter on 02.01.2023.

Interim order granted earlier shall continue till the next date of listing.

Order Date :- 21.11.2022

Himanshu

Court No. - 21

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh
Rathore,Rishu Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

List after three weeks.

Interim order, if any, is extended till the next date of listing.

Order Date :- 6.1.2023

Bhaskar

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 9041 of 2018

Petitioner :- Bhaghu

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vineet Kumar Singh

Counsel for Respondent :- C.S.C.,Kapil Dev Singh Rathore,Rishu Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The petitioner has challenged the recovery citation dated 6.2.2018 issued by the respondent No.3 for recovery of electricity dues in a case of alleged theft of electricity.

A co-ordinate Bench while entertaining the writ petition had passed the following order on 12.3.2018:

"Heard learned counsel for the petitioner, learned Standing Counsel for respondents no.1 to 3 and Sri S.S. Yadav, Advocate, holding brief of Sri Kapil Dev Singh Rathore, learned counsel for respondents no.4 and 5.

It is submitted by learned counsel for the petitioner that without initiating any proceedings as contemplated under Section 126 of the Electricity Act, 2003 read with clause 6.8 of the U.P. Electricity Supply Code, 2005, respondent no. 5 has illegally and arbitrarily and without affording any opportunity of hearing to the petitioner held the petitioner liable to pay a sum of Rs.1,05,120/- towards electricity dues and issued a Recovery Certificate dated 15.07.2017 to respondent no. 3, copy whereof has been appended as Annexure No.8 to the writ petition and pursuant thereto respondent no. 3 has issued the impugned Recovery Citation dated 06.02.2018, copy whereof has been appended as Annexure No.9 to the writ petition.

Specific averments in this regard have been made by the petitioner in Paragraphs 20 and 21 of the writ petition.

Sri S.S. Yadav, Advocate, holding brief of Sri Kapil Dev Singh Rathore, learned counsel for the respondents no. 4 and 5 prays for and is granted a week's time to seek instruction in the matter.

List on 21.03.2018 before the appropriate Court.

Till the next date of listing, recovery proceedings initiated against the petitioner pursuant to the impugned Recovery Citation dated 06.02.2018 (Annexure No.9 to the writ petition) shall remain stayed."

Ms. Rishu Mishra, learned counsel appearing on behalf of respondent-Electricity Department concedes that proper procedure as prescribed under the Electricity Supply Code, 2005 was not followed. She states that objection filed by the

petitioner will be decided by the respondent by means of fresh order after affording personal hearing to him.

Accordingly, the impugned citation is quashed leaving it open to the respondent to pass fresh order after following the procedure prescribed under the Electricity Supply Code, 2005.

The instant petition stands disposed of.

Order Date :- 3.2.2023

D. Tamang

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)